

# Durga Dubey v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 24 August 2023 · 2023:AHC:170552-DB · Writ - C No. 24060 of 2023 · **If one-sixth dues are deposited, process connection application as per law**

## HEADNOTE

Without deciding the merits, the Court by consent disposed of the writ with the observation that if the petitioner deposits a one-sixth share of the outstanding electricity dues, the authority shall process her application for a separate connection and redress her grievance expeditiously in accordance with law and clauses 4.1 and 4.3(g) and (h) of the Electricity Supply Code.

## FACTUAL SUMMARY

Durga Dubey claimed a one-sixth share in a house at Vindhyavasini Nagar Colony, Ardali Bazar, Varanasi, said to be Hindu undivided family property. The civil courts rejected that claim and ordered her and her husband's eviction. Second Appeal No. 221 of 2022 remained pending under a stay of eviction dated 29 March 2022. On 9 June 2023 she asked the Executive Engineer for a separate electricity connection in the portion she occupied, and for acceptance of only a one-sixth share of the outstanding dues, put at Rs.53,060.

## HOLDING-UNITS

### HOLDING-UNIT · UP-2005::4.3(h)

processing of a separate connection on deposit of a co-sharer's fraction of outstanding dues

#### HOLDING

The writ was disposed of by consent, without any opinion on the merits. If the petitioner deposits a one-sixth share of the outstanding electricity dues, the authority shall process her application dated 9 June 2023 for a separate connection and redress her grievance expeditiously in accordance with law and clauses 4.1 and 4.3(g) and (h) of the Electricity Supply Code, on which she had relied. ¶ 5-6

## PRINCIPLE TAGS

**4.3(h)-outstanding-dues** The Court did not decide what share of the premises dues the petitioner owed. It recorded her reliance on clauses 4.1 and 4.3(g) and (h) and observed that, on deposit of a one-sixth share, her separate-connection application be processed under those provisions and the law. ¶ 5-6

## NOT DECIDED — NEGATIVE AUTHORITY

### NOT DECIDED — WHETHER THE PETITIONER IS LIABLE ONLY FOR A ONE-SIXTH SHARE OF THE OUTSTANDING ELECTRICITY DUES, AND WHETHER A SEPARATE CONNECTION MUST BE GRANTED IN THE PORTION SHE OCCUPIES

The Court expressly declined to express any opinion on the merits and left the authority to process the application as per law and the Code. ¶ 6